

Court No. - 32

Case :- WRIT - C No. - 41066 of 2019

Petitioner :- Hari Ram Prajapati

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sanjay Kumar Yadav

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ravi Nath Tilhari,J.

This writ petition has been filed, inter alia, for the following relief:

"i. Issue writ or direction in the nature of certiorari quashing the impugned citation dated 30.10.2019 for an amount of Rs. 5,35,564/- + other issued by the respondent no. 2 (Annexure No. 6)."

Heard the learned counsel for the petitioner and Mr. Mahboob Ahmad, learned counsel for the electricity department and perused the record.

Learned counsel for the petitioner stated that the recovery citation has been illegally issued against the petitioner. Petitioner has not committed any theft of electricity. Learned counsel for the petitioner has further submitted that the respondents are taking coercive action against the petitioner without giving any opportunity of hearing and without following the provisions contained under the U.P. Electricity Supply Code 2005.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 23.12.2019 at 11.00 A.M. before the Respondent No. 3, Executive Engineer along with his objection, a copy of the writ petition and its annexures and adduce his evidence, if any, in support of his contention. The Respondent No. 3, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner and giving an opportunity of personal hearing to the petitioner within a period of four weeks thereafter.

It is open for the petitioner to adduce any cogent evidence, if any, in support of his contention and take all legal pleas as permissible in law.

For a period of seven weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner.

In case of default in filing the objection/representation, as indicated herein above, the present interim order shall stand vacated automatically.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

Let a copy of the provisional assessment order and checking report be served upon the petitioner during the course of the day.

We make it clear that we have not entered into the merits of the case and the same shall be decided by the authority concerned on its own merits.

With the above observations, the writ petition stands disposed of.

Order Date :- 12.12.2019

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